

7TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
20 & 21 Geo. 5. c. 50.	The Public Works Facilities Act, 1930.	Paragraph 2 of Part I of the First Schedule, except as regards any order submitted under section two to the appropriate Minister before the date of the passing of this Act.

CHAPTER 45.

An Act to amend the law with respect to customs
in the Isle of Man. [31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Increased
duties on
tea.

22 & 23
Geo. 5. c. 41.

1.—(1) In lieu of the duties of customs payable under section seven of the second Act of 1932, there shall, until the first day of August, nineteen hundred and thirty-seven, be payable on tea removed or imported into the Isle of Man duties of customs at the following increased rates, that is to say :—

Tea, not being an Empire product ... the lb. 6*d*.

Tea, being an Empire product ... the lb. 4*d*.

9 & 10
Geo. 5. c. 74.

(2) In this section the expression " Empire product " has the same meaning as in section five of the Act of 1919 as amended by any subsequent enactment.

(3) This section shall be deemed to have had effect as from the thirteenth day of May, nineteen hundred and thirty-six.

Continua-
tion of
certain
annual
duties.

2. Subject as hereinafter provided, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table,

shall continue to be payable as from the first day of August, nineteen hundred and thirty-six, until the first day of August, nineteen hundred and thirty-seven :—

TABLE.

Description of Goods.	Enactment imposing Duty.
Ale and Beer - - -	Section 8 of the second Act of 1932.
Cinematograph Films - -	Section 6 of the Act of 1925, as amended by section 12 of the Act of 1927, section 14 of the Act of 1928 and section 4 of the Act of 1935. 15 & 16 Geo. 5. c. 56. 17 & 18 Geo. 5. c. 20. 18 & 19 Geo. 5. c. 38. 25 & 26
Cocoa - - - - -	Section 4 of the Act of 1924. Geo. 5. c. 34. 14 & 15 Geo. 5. c. 24.
Clocks and watches and component parts of clocks and watches.	Section 6 of the Act of 1925, as amended by section 5 of the Act of 1933. 23 & 24 Geo. 5. c. 40.
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925.
Hop oil - - - - -	Section 3 of the Act of 1929. 20 & 21 Geo. 5. c. 1.
Matches - - - - -	Section 1 of the Act of 1933.
Motor cars, including motor bicycles and motor tricycles, and their accessories and component parts.	Section 6 of the Act of 1925, as amended by section 6 of the Act of 1926 and section 11 of the Act of 1927. 16 & 17 Geo. 5. c. 27.
Musical instruments, including gramophones, pianolas and other similar instruments; and accessories and component parts of musical instruments, and records and other means of reproducing music.	Section 6 of the Act of 1925, as amended by section 5 of the Act of 1933 and section 4 of the Act of 1935.
Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the second Act of 1932, and section 4 of the Act of 1933.

		Description of Goods.	Enactment imposing Duty.
20 & 21 Geo. 5. c. 42.	Spirits	- - - -	Section 2 of the Act of 1930.
	Sweets	- - - -	Section 2 of the Act of 1929, as amended by section 3 of the Act of 1933.
22 & 23 Geo. 5. c. 16.	Tobacco	- - - -	Section 19 of the first Act of 1932.
	Wines	- - - -	Section 1 of the Act of 1927 as amended by section 8 of the Act of 1933.

Provided that—

- (a) where any enactment set out in the second column of the foregoing table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and thirty-seven, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force; and
- (b) the provisions of this section relating to artificial silk and articles made wholly or in part of artificial silk shall have effect subject to the next following section of this Act.

Exemption from duty of certain artificial silk manufactured in the United Kingdom.

3.—(1) Any duties of customs for the time being payable on the removal or importation into the Isle of Man of artificial silk and articles made wholly or in part of artificial silk shall not be payable either on artificial silk yarn, straw or waste manufactured in the United Kingdom in respect of the manufacture of which no excise duty was chargeable, or on any goods manufactured in the United Kingdom from any such artificial silk yarn, straw or waste, unless drawback has been paid in respect thereof in the United Kingdom and has not been repaid.

(2) This section shall be deemed to have had effect as from the seventh day of March, nineteen hundred and thirty-six.

4.—(1) Until the first day of August, nineteen hundred and thirty-seven, a duty of customs at the rate of one pound for every thirty-six gallons shall be payable on all ale and beer removed or imported into the Isle of Man except—

Increased
duty on
certain
beer.

(a) ale and beer brewed in the United Kingdom;
and

(b) ale and beer being an Empire product within the meaning of section five of the Act of 1919 as amended by any subsequent enactment.

(2) The duty of customs imposed by this section shall be payable in addition to the duty of customs imposed by section eight of the second Act of 1932.

(3) This section shall be deemed to have had effect as from the tenth day of June, nineteen hundred and thirty-six.

5.—(1) A duty of customs equal to one-third of the value of the goods shall be payable on the removal or importation into the Isle of Man of the following goods, that is to say:—

Amend-
ments as
to duties
for safe-
guarding
key
industries.

(a) activated carbons and decolourising carbons, not being of animal origin;

(b) parts of wireless valves and similar rectifiers and parts of vacuum tubes, whether such parts are finished or not;

(c) ferro titanium containing not more than two per cent. of carbon, manganese metal containing not more than one per cent. of carbon, and chromium metal.

(2) A duty of customs at the rate of seven shillings and sixpence per pound weight shall be payable on the removal or importation into the Isle of Man of parts of arc lamp carbons, whether such parts are finished or not.

(3) The foregoing provisions of this section shall be deemed to have had effect as from the tenth day of June, nineteen hundred and thirty-six.

22 & 23

Geo. 5. c. 8.

26 Geo. 5. &

1 Edw. 8.

c. 34.

(4) Subsection (1) of section two of the second Act of 1932 (which empowers the Governor by order to impose additional duties corresponding to the duties imposed by orders made by the Treasury under section three of the Import Duties Act, 1932) shall have effect as if the reference to the said section three included a reference to that section as amended by section five of the Finance Act, 1936, and subsections (3), (5) and (6) of the said section two shall have effect accordingly.

(5) The duties imposed by the foregoing provisions of this section, and any additional duties imposed by an order made by the Governor under section two of the second Act of 1932 as amended by this section, shall be deemed for all purposes to be payable under section thirteen of the Act of 1926.

(6) If the Governor is satisfied, on the application of a person removing or importing into the Isle of Man after the passing of this Act any consignment of instruments or apparatus on which duty is payable under section thirteen of the Act of 1926—

- (a) that the consignment is required for that person's own use ; and
- (b) that goods similar to that consignment are not for the time being made, or likely to be made within a reasonable time, in any part of His Majesty's Dominions in quantities which are substantial in relation to the demand for those goods in the Isle of Man ;

the Governor may, if the application has been made before the removal or importation of the consignment, by licence authorise either—

- (i) the removal or importation of the consignment without payment of the duty so payable, but subject, unless the Governor otherwise directs by the licence, to payment of the duties payable or deemed to be payable on the consignment under Part I of the first Act of 1932 ; or
- (ii) the repayment, subject to such conditions as the Commissioners may impose for the protection of the revenue, of all or any of the duties aforesaid which have been paid on the consignment.

(7) In the case of any composite goods on which by virtue of section five of the first Act of 1932 the general ad valorem duty would be payable only up to the amount, if any, by which it exceeds the duty payable on the goods under section thirteen of the Act of 1926, the general ad valorem duty shall, instead of being so payable, be payable up to the full amount thereof and the duty under the said section thirteen shall be payable in accordance with subsection (2) of that section.

(8) In this section references to section thirteen of the Act of 1926 shall be construed as references to that section as amended by any subsequent enactment (including, unless the context otherwise requires, this section).

6.—(1) Where an order has been made by the Treasury under section six of the Finance Act, 1936, directing that any additional duty chargeable under Part I of the Import Duties Act, 1932, on a consignment of goods, being goods of a class or description to which the order applies, shall not be charged or shall be charged at such reduced rate as is specified in the order, then, on the removal or importation into the Isle of Man of any consignment of goods of that class or description, any additional duty payable on the consignment by virtue of an order made under section two of the second Act of 1932 shall not be charged or shall be charged at the said reduced rate, as the case may be, if—

Removal or reduction of additional duties in respect of certain iron and steel goods.

(a) at the time of the delivery under the Customs Acts of the entry of the consignment, or, in a case where the consignment is deposited in a bonded warehouse, at the time of the removal thereof from the warehouse, there is produced in respect of the consignment a certificate of origin and a quota certificate ; and

(b) the conditions on which those certificates were issued are complied with.

(2) In this section the expressions “certificate of origin” and “quota certificate” have the same meanings as in section six of the Finance Act, 1936.

7.—(1) Any order made by the Governor directing that goods of any class or description as respects which

Power to add or

remove
goods to or
from free
list, and
to charge
certain
duties, for
periods.

an order has been made by the Treasury under section seven of the Finance Act, 1936, shall—

- (a) be added to, or cease to be included in, the First Schedule to the first Act of 1932; or
- (b) be chargeable with a duty under section thirteen of the Act of 1933 or section eight of the Act of 1935 in lieu of the general ad valorem duty;

may direct that the goods shall be so added, or cease to be so included, or be so chargeable, as the case may be, for any period or periods specified in the order made by the Treasury:

Provided that if, at the time when any such order is made by the Governor, any period specified in the corresponding order made by the Treasury has already commenced, the order made by the Governor may direct that the goods in question shall be so added, or cease to be so included, or cease to be so chargeable, as the case may be, from the date of his order until the expiration of that period.

(2) Where any order is made under this section directing that goods shall be added to the said Schedule for any period or periods, being goods of a class or description chargeable with an additional duty under section two of the second Act of 1932, or with a duty chargeable in lieu of the general ad valorem duty as aforesaid, the order made by the Governor directing that duty to be charged shall be treated, as respects those goods, as suspended in its operation during the said period or periods.

Exemption—
from certain
duties of
goods im-
ported for
purposes
connected
with science,
art or sport.

8.—(1) If the Governor is satisfied on the application of a person removing or importing any goods into the Isle of Man after the passing of this Act, that—

- (a) the goods are intended to be used in scientific research, or for a purpose connected with the advancement of any branch of learning or art or with the promotion of any sport; and
- (b) the goods are not intended to be sold, or to be used for any purpose which is substantially a commercial purpose;

he may, if in view of all the circumstances of the case he deems it expedient so to do and if the application has

been made before the delivery of the goods to that person, by license authorise, either—

- (i) the removal or importation of the goods into the Isle of Man without payment of any duty to which this section applies; or
- (ii) if any such duty has been paid in respect of the goods, the repayment of the duty on the exportation of the goods, or the repayment of the duty whether the goods are exported or not, subject to such conditions as the Commissioners may impose for the protection of the revenue.

(2) A licence under this section may be granted in respect of any consignment of goods specified therein, or in respect of all consignments of goods of a class or description specified in the licence which are removed or imported into the Isle of Man by the applicant during such period as may be so specified:

(3) This section shall apply to duties of customs payable or deemed to be payable under Part I of the first Act of 1932 and to duties of customs chargeable on silk or artificial silk or articles made wholly or in part of silk or artificial silk.

9. If and when an order made by the Treasury or the Board of Trade under any provision of any enactment, whether passed before or after the passing of this Act, ceases to have effect under subsection (2) or subsection (3) of section nineteen of the Import Duties Act, 1932, whether as originally enacted or as applied for the purpose of that provision, any corresponding order made by the Governor under this Act, or under any other enactment relating to customs in the Isle of Man, whether passed before or after the passing of this Act, shall, if it has not previously ceased to have effect under the provisions of this Act or that other enactment, cease to have effect accordingly, but without prejudice to anything previously done thereunder or to the making of a new order.

Effect of
orders
ceasing to
have effect
under s. 19
of 22 & 23
Geo. 5. c. 8.

10.—(1) In lieu of the duties of customs payable under section nineteen of the Act of 1933, there shall, until the first day of August, nineteen hundred and thirty-seven, be payable on the importation into the Isle of Man from the Irish Free State of articles of the

Amendment
as to duties
on Irish
Free State
goods.

classes and descriptions specified in the first column of Part I of the First Schedule to this Act, and on the bringing into the Isle of Man from any country of any articles of the said classes and descriptions exported to that country from the Irish Free State, the duties of customs respectively specified in the second column of Part I of the said Schedule, subject to the provisions of Part II of the said Schedule :

Provided that nothing in this section shall apply to any articles imported or brought as aforesaid which are shown to the satisfaction of the Commissioners to have been imported into the Irish Free State in the same condition as that in which they were exported therefrom.

(2) The Commissioners may make such regulations as may be necessary for preventing the evasion of duty payable under this section in the case of articles brought into the Isle of Man from a country other than the Irish Free State, or otherwise for carrying this section into effect, and for that purpose may apply with any necessary modifications any regulations made under subsection (4) of section one of the Irish Free State
22 & 23
Geo. 5. c. 30. (Special Duties) Act, 1932 :

Provided that, until regulations are made under this subsection, any regulations made under subsection (2) of section nineteen of the Act of 1933 shall have effect for the purposes of this section as they had effect for the purposes of that section.

(3) This section shall be deemed to have had effect, in so far as it relates to turkeys, as from the seventh day of March, nineteen hundred and thirty-six, and, in so far as it relates to other goods, as from the twenty-eighth day of March, nineteen hundred and thirty-six.

Short title
and repeals.

11.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1936.

(2) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 10.

DUTIES ON CERTAIN IRISH FREE STATE GOODS.

PART I.

CLASS OR DESCRIPTION OF GOODS CHARGEABLE
AND RATE OF DUTY.

Class or Description of Goods.	Rate of duty.
1. Live Cattle—	£ s. d.
(a) under 6 months old - -	1 0 0 per head.
(b) 6 months old but under 15 months old - -	2 0 0 per head.
(c) 15 months old but under 2 years old - -	3 0 0 per head.
(d) 2 years old and upwards, not being cattle known as mincers - -	4 5 0 per head.
(e) 2 years old and upwards, being cattle known as mincers - -	2 0 0 per head.
2. Live Sheep and live Lambs -	5 0 per head.
3. Live Horses - - -	20 per cent.
4. Live Pigs - - -	40 per cent.
5. Other live animals - - -	30 per cent.
6. Meat—	
(a) Mutton or Lamb—	
Carcasses - - -	5s. 0d. per carcass.
Sides - - -	2s. 6d. per side.
Other kinds - - -	20 per cent.
(b) Pig's meat—	
Carcasses - - -	Such a rate of duty as will amount to 16s. 0d. per cwt. or to 40 per cent. whichever is the greater.
Other kinds (not being bacon or ham) - -	40 per cent.
(c) Beef and Veal - - -	30 per cent.
(d) Edible offals - - -	30 per cent.
(e) Other meat (not being bacon or ham) - -	20 per cent.

1ST SCH.
—cont.

Class or Description of Goods.	Rate of Duty.
7. Poultry—	
(a) Dead—	
Fowls, Ducks and Geese	1 <i>d.</i> per lb.
Turkeys - - -	2 <i>d.</i> per lb.
Other kinds - - -	30 per cent.
(b) Live - - - - -	30 per cent.
Game, whether live or dead -	30 per cent.

PART II.

MISCELLANEOUS PROVISIONS AS TO DUTIES.

1. Any duty payable under this Schedule on any article shall be payable in addition to any other duty of customs for the time being payable thereon, whether under Part I of the first Act of 1932 or under Part I of the second Act of 1932, or otherwise, and articles chargeable with duty under this Schedule shall not, for the purpose of Part I of the last mentioned Act, be deemed to be chargeable with a duty of customs by or under the provisions of any enactment relating to customs in the Isle of Man other than that Part of that Act.

2. References in this Schedule to a rate of duty of any percentage shall be construed as references to a rate of duty of that percentage of the value of the goods.

3. In any case where a duty payable on any goods under this Schedule would exceed the value thereof, this Schedule shall have effect as if there were substituted for that duty a duty of one hundred per cent. of the value thereof.

4. For the purposes of this Schedule the expression "cattle" means bulls, cows, oxen, heifers and calves.

SECOND SCHEDULE.

Section 11.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
22 & 23 Geo. 5. c. 41.	The Isle of Man (Customs) (No. 2) Act, 1932.	Section five.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Sections fifteen and nineteen, and the Fifth Schedule.
24 & 25 Geo. 5. c. 46.	The Isle of Man (Customs) Act, 1934.	Section six and the Schedule.
25 & 26 Geo. 5. c. 34.	The Isle of Man (Customs) Act, 1935.	Section five.

CHAPTER 46.

An Act to extend until the end of July, nineteen hundred and thirty-seven, the period during which cattle or carcasses of cattle must have been sold in order that payments in respect thereof may be made out of the Cattle Fund.

[31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The period specified in subsection (1) of section two of the Cattle Industry (Emergency Provisions) Act, 1934, (as amended by the Cattle Industry (Emergency Provisions) (No. 2) Act, 1935,) as the period during which cattle or carcasses of cattle must have been sold in order that payments in respect thereof may be made out of the Cattle Fund, is hereby extended so as to

Amendment
of s. 2 of
24 & 25
Geo. 5. c. 54.
25 & 26
Geo. 5. c. 39.